

SC090748 SC090748

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-08

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Case Number: SC090748 Hearing Date: July 8, 2026 Dept: M

CASE NAME: De Meritt, et

al., v. Television Auction Network, et al.

CASE NO.: SC090748

MOTION: Motion

to Set Aside Bank Levy

HEARING DATE: 7/8/2026

Legal

Standard

CCP section 700 et seq. sets out the requirements for a levy on deposit accounts. A creditor's compliance with the prerequisites of section 700.140 (service of levy) and section 700.160 (levy on third-party accounts, including spouses) creates a legal obligation on the bank to deliver the property in a deposit account to the levying officer. (CCP §701.010; Grover v. Bay View Bank (2001) 87 Cal. App. 4th 452, 457.)

"[A] notice of levy may be challenged by a motion to quash." (National Financial Lending, LLC v. Superior Court (2013) 222 Cal.App.4th 262, 271.) The appropriate remedy for a levy on the exempt assets of a nonparty is to "move to quash the allegedly wrongful writ of execution and levy, and obtain a return of his property." (Brown v. Kennard (2001) 94 Cal.App.4th 40, 42.)

Analysis

Third Party Tatiana Zinchenko moves
to quash the bank levy issued in this matter, ordering the immediate release of
all restrained or seized funds.

CCP section 700.010 requires the
levying officer to serve a copy of the writ of execution and notice of levy on
the judgment debtor, personally or via mail. Zinchenko submits a declaration of
the judgment debtor, Sarote Tabcum, which states that he was never served with
a Notice of Levy, Notice of Right to Claim Exemptions, Claim of Exemption form,
writ of execution, or any motion or order seeking to add Tatiana Zinchenko as a
judgment debtor, and first learned of the levy only after the accounts were
restrained. (Tabcum Decl., ¶¶ 2-3.)

Assignee of record George Sommers
opposes. He argues, in part, that the writ of execution had the correct address,
and that service by mail at a last known address satisfies the statutory notice
requirements. (Lee v Placer Title Co. (1994) 28 Cal. App.4th 503.)
However, Sommers does not submit any proof of service of the notice of levy on
the judgment debtor by the sheriffs or any other levying officer.

Accordingly, the motion is GRANTED.